

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR ENGROSSED
HOUSE BILL NO. 3764

By: Turner of the House

and

Hamilton of the Senate

COMMITTEE SUBSTITUTE

An Act relating to gang-related offenses; amending 21 O.S. 2021, Section 856.3, as last amended by Section 25 of Enrolled Senate Bill No. 1627 of the 2nd Session of the 60th Oklahoma Legislature, which relates to condition of membership; criminalizing certain acts related to foreign terrorist organizations; providing for penalties; authorizing a court to take judicial notice of certain designation; updating statutory language; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 856.3, as last amended by Section 25 of Enrolled Senate Bill No. 1627 of the 2nd Session of the 60th Oklahoma Legislature, is amended to read as follows:

Section 856.3. A. Any person who attempts or commits a gang-related offense as a condition of membership in a criminal street gang or while in association with any criminal street gang or gang

1 member shall be guilty of a Class B5 felony offense punishable upon
2 conviction by imprisonment in the custody of the Department of
3 Corrections for a term of five (5) years, which shall be in addition
4 to any other penalty imposed. For purposes of this ~~section~~
5 subsection, "criminal street gang" is defined by subsection F of
6 Section 856 of this title and "gang-related offense" means those
7 offenses enumerated in subsection F of Section 856 of this title.

8 B. Any person who attempts or commits a gang-related offense as
9 a condition of membership of, while in association with, acting on
10 behalf of, or knowingly supporting any foreign terrorist
11 organization shall be guilty of a Class B5 felony offense punishable
12 upon conviction by imprisonment in the custody of the Department of
13 Corrections for a term of five (5) years, which shall be in addition
14 to any other penalty imposed. For purposes of this subsection,
15 "foreign terrorist organization" means any organization designated
16 by the United States Department of State as such pursuant to 8
17 U.S.C., Section 1189. The court may take judicial notice of such
18 designation as published in the Federal Register or maintained by
19 the United States Department of State.

20 SECTION 2. This act shall become effective November 1, 2026.
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